



Supplemental Nutrition Assistance Program (SNAP) Authorized Representatives

Policy 24.05

Effective: March 1, 2019

Introduction

All Tennessee Department of Human Services (TDHS) staff shall inform individual applicants and prospective applicants, who indicate that they may have difficulty completing the application process, that a non-food unit member may be designated as the authorized representative for application processing purposes.

Scope

The purpose of this policy is to provide procedures and guidelines for employees to determine who may be an authorized representative for applicants and prospective applicants. The policy will also instruct employees on the processes regarding how and when the authorized representative can (1) make an application, (2) obtain SNAP benefits, and (3) use SNAP benefits on behalf of the customer.

Policy

A. Authorized Representatives

1. An authorized representative (AR) is an individual who has been designated by the household (HH) to act on behalf of the HH in regards to SNAP benefits.
2. The non-HH member must meet the following criteria:
 - a. be an adult;
 - b. have been designated in writing by the head of HH, the spouse, or another responsible HH member; and
 - c. be sufficiently aware of relevant HH circumstances to act in the HH's behalf.
3. An AR may act on behalf of the HH in any one or all of the following capacities:
 - a. apply for the HH;
 - b. obtain the HH's Supplemental Nutrition Assistance Program (SNAP) benefits; and/or
 - c. use the HH's SNAP benefits to purchase food for the HH.

4. The name of the AR must be recorded in the HH's case record. Staff shall refer to [Recording Authorized Representative Information and Procedures to Designate an Authorized Representative](#) for how to record the AR.

B. Making an Application for the Household and Obtaining SNAP Benefits

1. The HH will be informed that the head of HH or spouse should complete or review the application, whenever possible.
2. The responsible HH member or the AR will be allowed to complete the work registration and Employment and Training (E&T) referral for those HH members required to comply.
3. The HH will be held liable for any over issuance resulting from incorrect information given by the AR, unless the HH is participating in a drug or alcoholic treatment center.
4. A non-HH member, acting as an AR will be allowed to apply on behalf of the HH when the head of HH, spouse, or other responsible HH members cannot apply.
5. The HH may designate an AR to obtain its SNAP benefits.
 - a. The AR does not have to be the same individual who was designated to make application for the HH.
 - b. The HH will be advised that such designation must be made at the time of certification.
 - c. Staff shall refer to [Recording Authorized Representative Information and Procedures to Designate an Authorized Representative](#) for instruction on how to designate an AR.

C. Using the SNAP Benefits

1. An AR may purchase food items for the HH, using its SNAP benefits. The AR does not have to be the same individual as previously designated, nor does designation of this AR have to be in writing.
2. The AR must have the HH's Electronic Benefit Transfer (EBT) card and PIN with the full knowledge and consent of the HH.
3. When the AR is named on the case record and is authorized to use the benefits, he/she will receive their own EBT card and PIN.

D. Emergency Authorized Representative

An emergency AR is used when neither a responsible HH member nor the HH's regular AR is able to obtain the SNAP benefits.

E. Disqualification of an Authorized Representative

1. The eligibility counselor will disqualify an AR when evidence is obtained that the AR has:
 - a. knowingly misrepresented the HH's circumstances or intentionally provided false information concerning the HH;
 - b. improperly used the HH's SNAP benefits.
2. An AR for any HH, other than residents of a drug or alcoholic treatment center, will be disqualified for up to one (1) year. The following steps will be taken when a disqualification has occurred:
 - a. The HH and AR will be provided with a written notice of disqualification.
 - b. The notice will contain:
 - i. the proposed action;

- ii. the reason for the disqualification of the AR;
- iii. the right to a fair hearing; and
- iv. the eligibility counselor's telephone number

F. Restrictions on Who May Be an Authorized Representative

Do not allow the HH to designate any of the following individuals as an AR:

1. An AR shall not be department employees who are involved in the certification or issuance processes;
2. Retailers who are authorized to accept SNAP benefits may not act as ARs without the specific written approval of a designated department official and only if that official determines that no one else is available to serve as an AR;
3. An individual disqualified for an intentional program violation cannot act as an AR during the disqualification period, unless the department has determined that no one else is available to serve as an AR.
4. Homeless meal providers as described in the [Policy 24.06 SNAP Special Living Arrangements](#) may not act as ARs for homeless SNAP recipients.

Supporting Documents

[Recording Authorized Representative Information and Procedures to Designate an Authorized Representative](#)

[Policy 24.06 SNAP Special Living Arrangements](#)

Definitions/Acronyms

Term	Definition
Adult	Anyone the age of eighteen (18) and over.
AR	Authorized Representative
Department	Refers to the Tennessee Department of Human Services
EBT	Electronic Benefit Transfer
E&T	Employment and Training
HH	Household
Non-food unit member	An individual not participating in the SNAP unit.
SNAP	Supplemental Nutrition Assistance Program

Supersedes

SNAP Policy Manual, July 2017, Chapter 2

Authority

7 CFR § 273.2 (n)(1)

Tenn. Comp. R. & Regs. 1240-01-02-.02(6)(e)

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
02/15/2019	03/01/2019	N/A	New Document

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Danielle Barnes	Commissioner	02/15/2019	03/01/2019

Current Approver